AL

Ashford Lane Lawyers
Personal Injury & Workers' Compensation
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5 February 2024

Ms Alex Rowan
Occupational Therapist
Rowan OT Assessments
PO Box 5552
Brisbane QLD 4001

RE: DANIEL JAMES MARSH — DOB 14/03/1984
Claim number: UI-22-0815-4471 · Date of injury: 08/08/2022

Dear Ms Rowan,

We act for Mr Daniel Marsh in relation to his statutory workers' compensation claim and a proposed common law claim for damages against his employer, Brightline Logistics Pty Ltd, arising from an injury to his lower back sustained at work on 8 August 2022.

We are instructed to obtain an independent occupational therapy assessment of Mr Marsh's functional capacity, his needs for care and assistance, and his capacity to return to his pre-injury employment or alternative employment. We confirm that the assessment is to be conducted at Mr Marsh's home on a date to be arranged directly with him.

Background. Mr Marsh was employed as a storeperson and forklift operator. He reports injuring his lower back while lifting a carton from floor level. He subsequently underwent a left L4/5 microdiscectomy in November 2022 and has had a prolonged period of reduced capacity. We understand he continues to experience low back pain and intermittent left leg symptoms.

Documents enclosed. We enclose a copy of the documents produced to us by the insurer, the employer and Mr Marsh's treating practitioners. The documents have been provided to us in the form in which they were received and **have not been sorted, culled or paginated**. Some documents may be duplicated, incomplete or may not relate to our client. Please let us know if you identify any document that appears to relate to another person, so that we can return it to its source.

Questions. Please address the following in your report:

- What is Mr Marsh's current functional capacity for personal, domestic and community activities?
- What care and assistance (gratuitous or paid) has Mr Marsh required since the injury, and what is likely to be required in future?
- Is Mr Marsh able to return to his pre-injury duties as a storeperson / forklift operator? If not,

what work is he capable of, and for how many hours per week?

- What aids, equipment or home modifications are reasonably required?
- Any other matter you consider relevant.

Facts and assumptions. Please identify in your report any facts or assumptions on which your opinions are based, and the documents and information you have relied upon. Where you are unable to reach a concluded opinion because of insufficient information, please say so.

Care and assistance. In relation to care, please distinguish between assistance provided before and after the surgery in November 2022, and between domestic assistance (such as cleaning, laundry, shopping and yard maintenance) and personal care. Mr Marsh's partner, Ms Kylie Marsh, has provided most of the assistance to date and may be available to speak with you at the assessment.

Employment. We enclose the position description for his pre-injury role and the most recent correspondence from his employer about the availability of suitable duties. Please comment on the suitability of the duties described for Mr Marsh's current capacity.

Code of conduct. Your report should comply with the expert witness code of conduct, a copy of which is enclosed. Please acknowledge in your report that you have read the code and agree to be bound by it.

Fees and timing. Please provide an estimate of your fees before commencing. Your reasonable fees will be met by this firm and are not contingent on the outcome of the claim. We would be grateful to receive your report within six weeks of the assessment.

Please do not hesitate to contact the writer if you require anything further.

Yours sincerely,

S. Okafor

Sarah Okafor

Associate
Ashford Lane Lawyers

Enclosures: Bundle of documents (unsorted); Expert witness code of conduct

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Expert Witness Code of Conduct (summary for experts)

Application

This code applies to any expert engaged to provide a report or give evidence in proceedings. (Fictional summary prepared for this bundle; not a statement of any jurisdiction's rules.)

General duty to the court

An expert has an overriding duty to assist the court impartially on matters within the expert's field of expertise. This duty overrides any obligation to the party engaging the expert. An expert is not an advocate for a party.

Content of report

- The expert's qualifications
- The facts and assumptions on which the opinions are based
- The reasons for each opinion
- Any literature or materials relied upon
- Any examinations, tests or investigations, and who carried them out
- A declaration that the expert has made all appropriate enquiries
- Any qualification of an opinion, and whether the report may be incomplete or inaccurate without some qualification

Supplementary reports

If an expert changes an opinion after a report is provided, the expert must provide a supplementary report stating the change and the reasons for it.

Experts' conference

An expert directed to confer with another expert must exercise independent judgement and must not act on instructions to withhold or avoid agreement.

Acknowledgement

Experts must state in their report that they have read this code and agree to be bound by it.

FACSIMILE

Unity Insurance Level 9, 200 Adelaide Street, Brisbane

To:	Ashford Lane Lawyers — Sarah Okafor
Fax:	07 5550 3321
From:	Rachel Kim
Phone:	07 5550 7700
Date:	18/01/2024
Pages (incl. cover):	34
Re:	D. Marsh — claim UI-22-0815-4471

Further to your request, please find following documents from the claim file. Remaining documents will follow by post.

CONFIDENTIALITY NOTICE: This facsimile is intended only for the addressee and may contain confidential or privileged information. If you have received it in error, please notify the sender immediately and destroy all copies.

WORKERS' COMPENSATION — WORKER'S CLAIM FORM

Part A — Worker details

Family name	Given names
Marsh	Daniel James

Date of birth	Sex	Phone
14/03/1984	M	0491 570 156

Residential address: 17 Wattle Grove, Carrick Park QLD 4127

Email	Interpreter required?
dan.marsh84@example.com	No

Part B — Employment details

Employer name	Employer phone
Brightline Logistics Pty Ltd	07 5550 4410

Workplace address: Distribution Centre, 42 Freightway Drive, Lytton Heights QLD 4178

Your occupation / job title	Start date	Hours per week
Storeperson / forklift operator	06/02/2017	38

☑ Full time ☐ Part time ☐ Casual ☐ Labour hire

Part C — Injury details

Date of injury	Time of injury	Date reported to employer
08/08/2022	10:40 am	08/08/2022

Where did it happen?
Aisle 14 picking face, Distribution Centre

Describe what happened (what were you doing, how were you injured)
I was picking an order in aisle 14. I bent down to lift a carton of floor tiles (about 28 kg) off the bottom shelf at floor level and twisted to put it on the pallet jack. I felt a sharp pain in my lower back and pain went down the back of my left leg. I told Craig straight away. I could not keep working.

What part of your body was injured and how?
Lower back, more on the left side, with pain and pins and needles down the back of my left leg to my foot.

WORKER'S CLAIM FORM (continued)

Part D — Medical treatment

Name of doctor / medical centre	Phone
Dr Anil Mehta, Northbank Medical Centre	07 5550 1180

Date first seen for this injury	Certificate of capacity attached?
09/08/2022	Yes

☑ Have you had this injury / condition before?

If yes, give details

Sore lower back in 2019 after gardening. Saw GP and physio a few times, it got better.

Part E — Time off work

☑ I have stopped work because of this injury

Date stopped work	Have you returned to work?
08/08/2022	No

Part F — Earnings

Average gross weekly earnings (before tax)	Paid by
$1,186.40	Weekly EFT

Part G — Other employment and claims

☐ I have a second job

☐ I have made a previous workers' compensation claim

WORKER'S CLAIM FORM (continued)

Part H — Declaration and authority

I declare that the information I have given in this claim is true and correct. I understand that giving false or misleading information is a serious offence. I authorise any doctor, hospital, employer or other person to give the insurer information about my injury, treatment, employment and earnings, and I authorise the insurer to give that information to people involved in managing my claim.

Worker's signature	Date
D. Marsh	10/08/2022

Office use only

Date received	Claim number	Case manager
	UI-22-0815-4471	Rachel Kim

WORKPLACE INCIDENT / INJURY REPORT

1. Person involved

Name	Employee no.	Department
Daniel James Marsh	BL-20417	Inbound / Picking
Position	**Supervisor**	
Storeperson / forklift operator	Craig Dunlop	

2. Incident details

Date	Time	Location
08/08/2022	10:40 am	Aisle 14 picking face, Distribution Centre

☑ Injury ☐ Near miss ☐ Property damage ☐ Hazard

Description of incident (sequence of events)

Worker was picking stock (boxed floor tiles, approx 28 kg per carton) from bottom bay of aisle 14. Lifted carton from floor level and twisted to load onto pallet jack. Reported immediate sharp low back pain radiating to L leg. Stopped work. Team leader notified 10:45. No other person involved.

Nature of injury / body part

Low back strain with L leg pain (as reported by worker). No visible injury.

Witnesses

Liam Turner (Forklift operator)

3. First aid and treatment

First aid given / by whom

Ice pack applied by first aider (S. Patel) 10:50. Rested in lunch room. Partner collected worker at 11:30.

☑ Referred to doctor ☐ Ambulance called ☑ Sent home

4. Investigation and corrective actions

Contributing factors

Heavy cartons stored at floor level on bottom bay. Twisting while lifting to load pallet jack. Worker was working alone on this pick. Mechanical aid (vacuum lifter) not available on this aisle.

Corrective actions (who / by when)

Re-slot heavy SKUs to waist height bays (C. Dunlop, 31/08). Refresher manual handling for picking team (M. Ross, 15/09). Request quote for second vacuum lifter (Ops Manager, 30/09).

Completed by (supervisor)	Signature	Date
Craig Dunlop	C Dunlop	08/08/2022

WHS officer review	Date reviewed
Megan Ross (WHS Coordinator)	12/08/2022

Witness statement - 9/8/22

My name is Liam Turner. I am a forklift driver at Brightline Lytton.

On Monday 8 August at about 10.40 I was in aisle 14 dropping a pallet. Dan was picking tiles off the bottom bay.

I saw him lift a box from the floor and turn to put it on the jack. He made a noise and grabbed his back and went down on one knee.

He said his back had gone and his leg was burning. I got Craig. Sanjay brought an ice pack.

Dan has never complained to me about his back before. The tile boxes are heavy and they are always on the bottom.

Signed: L Turner 9/8/2022

Unity Insurance
Workers' Compensation Claims

Level 9, 200 Adelaide Street, Brisbane QLD 4000
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30 August 2022

Mr Daniel Marsh
17 Wattle Grove
Carrick Park QLD 4127

RE: DANIEL JAMES MARSH — DOB 14/03/1984
Claim number: UI-22-0815-4471 · Date of injury: 08/08/2022

Dear Mr Marsh,

Notice of decision — claim accepted

We have made a decision on your workers' compensation claim for an injury to your lower back on 8 August 2022. **Your claim has been accepted.**

We have accepted liability for: lumbar strain with left-sided sciatica. If your treating doctor diagnoses a different or additional condition, please let us know so that we can consider it.

Weekly payments: you will receive weekly compensation from 9 August 2022 based on your normal weekly earnings of $1,186.40, at 85% while you have no capacity for work during the first 26 weeks, subject to the scheme rules.

Medical and rehabilitation expenses: we will pay for reasonable medical treatment related to your injury. Some treatment, such as imaging and surgery, requires pre-approval.

Your case manager is Rachel Kim. If you disagree with any part of this decision you can ask for a review within 3 months. Information about your review rights is enclosed.

Yours sincerely,

R. Kim

Rachel Kim

Case Manager
Unity Insurance — Workers' Compensation

Enclosures: Your review rights